

WAIVER AND RELEASE OF LIABILITY

Cave Pilates, LLC

31 Orland Square Drive, Suite B
Orland Park, Illinois 60462

This Waiver and Release of Liability (“Agreement”) is entered into by and between Cave Pilates, LLC (“**Cave Pilates**”) and the undersigned participant (“**Participant**”).

1. Acknowledgment of Risks

Participant understands and acknowledges that participation in Pilates classes, fitness instruction, stretching, exercise activities, use of exercise equipment, and related activities at Cave Pilates involves inherent risks, including but not limited to:

- Muscle strains, sprains, tears, and soreness;
- Slips, falls, and other accidents;
- Aggravation of pre-existing medical conditions;
- Cardiovascular events, including heart attack or stroke;
- Serious bodily injury, disability, paralysis, or death.

Participant acknowledges that these risks may result from Participant’s own actions, the actions of others, the condition of the premises or equipment, or the negligence of Cave Pilates and its owners, employees, contractors, instructors, agents, or affiliates.

2. Assumption of Risk

Participant voluntarily assumes all risks associated with participation in any activities at Cave Pilates, whether known or unknown, foreseeable or unforeseeable, including risks arising from ordinary negligence.

Participant certifies that they are physically capable of participating in fitness activities and have no medical condition that would prevent safe participation. Participant understands that Cave Pilates does not provide medical advice and recommends consulting a physician before beginning any exercise program.

3. Waiver and Release

To the fullest extent permitted by Illinois law, Participant hereby waives, releases, discharges, and covenants not to sue Cave Pilates, LLC, its owners, members, managers, employees, instructors, contractors, agents, affiliates, successors, landlords, and assigns (collectively, the “Released Parties”) from any and all claims, liabilities, demands, actions, damages, costs, or expenses arising out of or related to:

- Personal injury;
- Illness or medical complications;
- Property damage;
- Disability;
- Death; or
- Any other loss or harm

arising from or connected with Participant's use of the facilities, participation in classes or activities, or presence on the premises, including claims arising from the ordinary negligence of the Released Parties.

4. Indemnification

Participant agrees to indemnify and hold harmless the Released Parties from and against any claims, damages, liabilities, costs, or attorney's fees arising out of Participant's actions, conduct, or participation in activities at Cave Pilates.

5. Medical Treatment Authorization

Participant authorizes Cave Pilates to obtain emergency medical treatment on Participant's behalf if deemed necessary. Participant understands and agrees that they are solely responsible for any medical expenses incurred.

6. Pregnancy and Medical Conditions

Participant acknowledges that if pregnant, recently postpartum, injured, or suffering from any medical condition, Participant has consulted with a healthcare provider before participating and assumes all associated risks.

7. Photography and Media Release

Participant grants Cave Pilates permission to photograph or record Participant during classes or events and to use such images or recordings for promotional, advertising, and social media purposes without compensation, unless Participant provides written notice opting out.

8. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois.

9. Severability

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

10. Entire Agreement

This Agreement constitutes the entire agreement between the parties relating to the subject matter herein and supersedes all prior discussions or understandings.

11. Acknowledgment and Voluntary Execution

Participant acknowledges that they have carefully read this Agreement, fully understand its contents, understand that they are waiving substantial legal rights, and sign it voluntarily and without inducement.

PARTICIPANT INFORMATION

Participant Name: _____

Date of Birth: _____

Address: _____

Phone Number: _____

Email: _____

SIGNATURE

Participant Signature: _____

Date: _____

If Participant is under 18 years of age:

Parent/Guardian Name: _____

Parent/Guardian Signature: _____

Date: _____